

SOTOMAYOR, J., dissenting

dents might stop and think carefully before taking action that borders on criminal. Instead, the majority's main concern could be that Presidents will be deterred from taking necessary and lawful action by the fear that their successors might pin them with a baseless criminal prosecution—a prosecution that would almost certainly be doomed to fail, if it even made it out of the starting gate. See *ante*, at 640. The Court should not have so little faith in this Nation's Presidents. As this Court has said before in the context of criminal proceedings, “[t]he chance that now and then there may be found some timid soul who will take counsel of his fears and give way to their repressive power is too remote and shadowy to shape the course of justice.” *Nixon*, 418 U. S., at 712, n. 20 (quoting *Clark v. United States*, 289 U. S. 1, 16 (1933)). The concern that countless (and baseless) civil suits would hamper the Executive may have been justified in *Fitzgerald*, but a well-founded federal criminal prosecution poses no comparable danger to the functioning of the Executive Branch.

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At the same time, the public interest in a federal criminal prosecution of a former President is vastly greater than the public interest in a private individual's civil suit. All nine Justices in *Fitzgerald* explicitly recognized that distinction. The five-Justice majority noted that there was a greater public interest “in criminal prosecutions” than in “actions for civil damages.” 457 U. S., at 754, n. 37. Chief Justice Burger's concurrence accordingly emphasized that the majority's immunity was “limited to civil damages claims,” rather than “criminal prosecution.” *Id.*, at 759–760. The four dissenting Justices agreed that a “contention that the President is immune from criminal prosecution in the courts,” if ever made, would not “be credible.” *Id.*, at 780 (White, J., dissenting). At the very least, the *Fitzgerald* Court did not expect that its balancing test would lead to the same outcome in the criminal context.